



EMPLOYMENT-BASED • EB-3

EB-3 Visa Guide

Third Preference — Skilled Workers, Professionals, Other Workers

Complete guide to EB-3 — covers Skilled Workers, Professionals, and Other Workers (Unskilled). Includes the PERM Labor Certification process, AC21 portability, country-specific waits, and filing strategy.

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WHAT'S INSIDE THIS KIT:

✓ Three EB-3 subcategories ✓ Eligibility requirements ✓ PERM Labor Certification (detailed) ✓ Step-by-step process ✓ Required forms & documents ✓ Fees & timeline ✓ Visa Bulletin / country waits ✓ AC21 job portability ✓ Common mistakes ✓ Strategy tips

All USCIS forms: uscis.gov/forms | Tools: immigrationiq.us

1. EB-3 Categories Overview

EB-3 is the third-preference employment-based immigrant visa. It has the broadest eligibility of all employment categories — including unskilled workers — but the longest country-specific waits.

Skilled Workers	Professionals	Other Workers (Unskilled)
Position requires 2+ years training/experience	Position requires U.S. Bachelor's degree or foreign equivalent	Position requires less than 2 years training/experience
Most common EB-3 path	Bachelor's degree must be in the specific field	Subject to separate, longer wait time
Examples: chefs, electricians, IT support	Examples: accountants, teachers, engineers	Examples: housekeepers, food workers, construction
PERM required	PERM required	PERM required
No advanced degree needed	No experience requirement beyond Bachelor's	Limited annual visas (5,000)

■ **EB-3 'Other Workers' has only ~5,000 visas per year worldwide and faces extreme backlogs (often 10+ years) for India, China, Mexico, and Philippines. Verify on the latest Visa Bulletin.**

2. Skilled Worker — Eligibility

- Position requires at least 2 years of training, education, or experience
- You must possess this required experience/training
- Position must not be of a temporary or seasonal nature
- Employer must obtain approved PERM Labor Certification
- Foreign credentials must be evaluated for U.S. equivalence

Common Skilled Worker Occupations

- Chefs and head cooks (with 2+ years training)
- Skilled electricians, plumbers, HVAC technicians
- IT support specialists, network administrators
- Welders, machinists, mechanics with specialized training
- Healthcare workers below RN (medical assistants, technicians)

3. Professional — Eligibility

- Position requires a U.S. Bachelor's degree or foreign equivalent
- Position must require the specific degree (not just 'preferred')
- Bachelor's must relate directly to the work

- Cannot substitute experience for the degree
- Foreign Bachelor's needs credential evaluation by NACES-member service

TIP: If you have a U.S. Master's, you might consider EB-2 instead — usually faster than EB-3 unless you're from a heavily backlogged country and EB-3 is current for your country.

4. Other Workers (Unskilled) — Eligibility

- Position requires less than 2 years of training, education, or experience
- Permanent, full-time position (not seasonal)
- Same PERM Labor Certification process applies
- Heavy backlog: only ~5,000 worldwide visas per year

■ **EB-3 Other Workers wait times can exceed 10-15+ years for some countries. Many people have abandoned 'Other Workers' filings due to multi-decade waits. Confirm current Visa Bulletin status before pursuing.**

5. PERM Labor Certification — Detailed Process

Every EB-3 case requires PERM (no NIW option). The Department of Labor's PERM process verifies no qualified U.S. workers are available for the position at the prevailing wage.

1. Prevailing Wage Determination (PWD): Employer files Form ETA-9141 with DOL. DOL determines the prevailing wage based on Occupational Employment Statistics or alternative wage source. Processing: 2-6 months.

2. Recruitment Phase: Employer must conduct mandatory recruitment: (a) Job order with State Workforce Agency for 30 days, (b) Two Sunday newspaper advertisements, (c) Internal job posting for 10 business days, (d) THREE additional recruitment steps from a list of ten.

3. 30-Day Quiet Period: After recruitment ends, wait 30 days before filing. Total recruitment + quiet period must be at least 60 days.

4. File ETA-9089: Employer files PERM application electronically with DOL. Form must precisely match recruitment activities and PWD.

5. DOL Review or Audit: Standard cases: 6-12 months. If DOL audits, add 6-18 months. PERM either certified, denied, or withdrawn for re-filing.

6. Begin I-140 Filing: Employer must file I-140 within 180 days of PERM certification. Certification expires after 180 days.

Mandatory PERM Recruitment Activities (in addition to job order + 2 ads)

- Choose 3 of 10: Job fair, employer's website, job search website, on-campus recruiting, trade/professional organizations, private employment firms, employee referral with incentives, campus placement office, local/ethnic newspapers, radio/TV ads
- All ads must include employer name, geographic location, job duties — but cannot include qualifications stricter than what's in the PERM application

■ **Common PERM denial reasons: deficient ad content, missed deadlines, insufficient response handling, incorrect SOC code, prevailing wage mismatch. PERM is one of the most technical immigration filings — strongly consider attorney representation.**

6. Step-by-Step EB-3 Filing Process

- 1. Confirm Eligibility:** Employer identifies position; you confirm meeting Skilled / Professional / Other Worker requirements.
- 2. PERM Process:** Employer drives PERM through DOL. 8-15 months typically. Includes PWD, recruitment, quiet period, ETA-9089.
- 3. File Form I-140:** After PERM certified, employer files I-140 with USCIS. Must file within 180 days of PERM. Filing fee: \$715.
- 4. Optional: Premium Processing:** Employer can pay \$2,805 for 15-business-day USCIS response on I-140.
- 5. Wait for Visa Number:** Per Visa Bulletin priority date. Heavy waits for India, China, Mexico, Philippines.
- 6. File I-485 or DS-260:** I-485 if in U.S. (\$1,440); DS-260 if consular (\$325). Concurrent I-140 + I-485 if priority date current.
- 7. AC21 Job Portability (after 180 days):** Once I-485 has been pending 180+ days, you can change to similar job at new employer without losing your case.
- 8. Receive Green Card:** 10-year permanent green card. No conditions.

7. Required Documents

Employer Provides

- Approved PERM Labor Certification (ETA-9089)
- Proof of ability to pay the offered wage (tax returns, audited financials)
- Detailed job description matching PERM
- Form I-140 with supporting documentation
- Initial offer letter and ongoing employment confirmation

Beneficiary Provides

- Valid passport (biographic page)
- Birth certificate with certified English translation
- Marriage/divorce certificates (if applicable)
- Detailed CV/resume
- Educational credentials with foreign credential evaluation
- Employment verification letters proving required experience
- Skills certifications, licenses, training records (Skilled Workers)

8. Fees & Timeline

Item	Cost / Time
I-140 (Immigrant Petition)	\$715
I-140 Premium Processing (optional)	\$2,805 (15 business days)
I-485 (Adjustment of Status)	\$1,440
I-765 work permit (with I-485)	\$0 (included)
I-131 Advance Parole (with I-485)	\$0 (included)
DS-260 (consular processing)	\$325
PERM filing	\$0 to DOL; \$4,000-\$15,000 attorney + recruitment
PERM timeline	8-15 months (longer with audit)
I-140 standard processing	6-12 months
I-485 timeline	8-14 months after priority date current

9. Visa Bulletin & Country-Specific Waits

EB-3 wait times vary dramatically by country of birth. Heavy demand from India, China, Mexico, and Philippines creates multi-year backlogs. Check the Visa Bulletin monthly.

Country	Approximate EB-3 Skilled/Professional Wait
Most countries (Worldwide)	Currently 1-3 years
India	8-15+ years
China	3-6 years
Mexico	1-3 years
Philippines	1-3 years
EB-3 Other Workers (any country)	Add 5-10+ years to above

TIP: Sometimes EB-3 is faster than EB-2 for Indian-born applicants because EB-2 demand is so high. Watch the Visa Bulletin and consider 'downgrading' from EB-2 to EB-3 if EB-3 has earlier dates.

10. AC21 Portability — Job Mobility

Section 106(c) of the American Competitiveness in the 21st Century Act (AC21) lets you change to a same/similar job after I-485 has been pending 180+ days, without abandoning your I-140.

AC21 Requirements

- I-485 must have been pending 180+ days
- I-140 must be approved (or pending 180+ days and ultimately approved)
- New job must be in 'same or similar' occupation as the PERM job
- Submit Form I-485 Supplement J to confirm continued employment

Benefits of AC21

- You're not stuck with your original sponsoring employer for 5+ years
 - Allows promotions, salary increases, switching companies
 - Spouse's H-4 EAD continues if applicable
 - Children aging out: CSPA can preserve eligibility
- **Be careful — 'same or similar' is interpreted by USCIS based on SOC code, duties, and skill level. Consult an attorney before changing jobs to avoid jeopardizing your case.**

11. Common Mistakes to Avoid

- Filing PERM with insufficient or non-compliant recruitment activities
- Ad content stricter than PERM requirements (eliminates qualified U.S. applicants)
- Using inflated requirements not reflective of normal industry standards
- Not properly documenting reasons for rejecting U.S. applicants
- Missing the 180-day deadline to file I-140 after PERM certification
- Forgetting credential evaluation for foreign degrees
- Job switching before AC21 eligibility
- Inadequate ability-to-pay evidence from the employer

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→ Visa Bulletin Dashboard	immigrationiq.us/visa-bulletin
→ USCIS Fee Calculator	immigrationiq.us/fee-calculator
→ Find Immigration Lawyers	immigrationiq.us/lawyers
→ Free Legal Aid Resources	immigrationiq.us/lawyers (Free Legal Aid tab)



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